

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

December 9, 2024 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.		
51.		
52.		
53.		
54.		
55.	Bruce v. Vaagen 2023-01300922	Plaintiff Lori Anne Bruce's motion for leave to file a supplemental complaint is GRANTED. (Code Civ. Proc., § 473, subd. (a) [authorizing amendment]; <i>Mabie v. Hyatt</i> (1998) 61 Cal.App.4th 581, 596 [strong policy favoring liberal granting of amendments]; <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565 [absent prejudice, delay alone insufficient to deny amendment; no prejudice shown here].) Moving party attached a copy of the proposed Supplemental Complaint as an exhibit to the moving papers, which cannot be detached for filing. Moving party shall separately e-file the proposed Supplemental Complaint (Ex. 14) within five days, which shall be deemed served upon filing. Separate e-filing is required to ensure the pleading is properly indexed in the court's electronic filing system. Moving party shall give notice.
56.	Sagebrush LLC v. Anthem Blue Cross Life and Health Insurance Company 2023-01332466	<u>Demurrer to First Amended Complaint</u> Defendant Anthem Blue Cross Life and Health Insurance Company's demurrer to first amended complaint is SUSTAINED without leave to amend as to the third cause of action for unjust enrichment, and SUSTAINED as to all other causes of action with 10 days leave to amend. Plaintiff Sagebrush LLC shall serve and file any second amended complaint by no later than 12/19/24.

1st cause of action, breach of implied contract. The first amended complaint (FAC) fails to state facts sufficient to constitute a cause of action for breach of implied contract. (See *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [elements]; *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230 (*Aton*) [same]; see *id.* at p. 1231 [contract formation requires mutual assent].)

The FAC fails to state facts sufficient to allege the existence of an implied contract by which defendant agreed to pay 100% of the subject claims. Contrary to plaintiff's allegations and contentions, an insurer's mere verification of benefits (see FAC ¶¶ 30, 36) or preauthorization of treatment (*id.* ¶¶ 31-32, 36) does not amount to a promise to pay 100% of plaintiff's charges. (See *Aton, supra*, 93 Cal.App.5th at pp. 1235-1236, 1238-1239; see also *Pacific Bay Recovery, Inc. v. California Physicians' Services, Inc.* (2017) 12 Cal.App.5th 200, 216 (*Pacific Bay*).) Further, the mere fact that defendant knew how much plaintiff's services cost and "authorized and requested" that plaintiff provide services to its insureds (FAC ¶¶ 32-33, 36) does not somehow show defendant agreed to be 100% liable for those costs. Finally, the mere fact that defendant has historically paid 100% of plaintiff's charges (see *id.* ¶¶ 16 [alleging the existence of agreement to pay 100% of plaintiff's services "based on the parties' prior transactions"], 38), does not demonstrate an agreement or mutual understanding that defendant will continue to pay plaintiff at that rate. Rather, "this only establishes [plaintiff's] unilateral expectation that [defendant's] future reimbursements w[ill] reflect its historical payment rates; it does not establish that the parties mutually agreed ... that [defendant's] payment of the subject claims would comport with its payment of prior claims." (*Aton*, at p. 1238.)

2nd cause of action, unfair business practices. The FAC fails to state facts sufficient to constitute a cause of action for unfair business practices, with the requisite particularity. (See Bus. & Prof. Code, § 17200 [UCL]; *Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 195 [unlawful prong]; *Farmers*

Ins. Exchange v. Superior Court (1992) 2 Cal.4th 377, 389 [unfair prong]; *Paduano v. American Honda Motor Co., Inc.* (2009) 169 Cal.App.4th 1453, 1469 [fraudulent prong]; see also *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 [reasonable particularity]; *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1262, 1261 [like other statutory causes of action, a UCL claim must be pled with reasonable particularity].)

To the extent the UCL claim is based on defendant's alleged failure to fully pay plaintiff for services rendered to defendant's insureds (see FAC ¶¶ 14, 45-47), the FAC fails to allege facts establishing defendant's obligation to pay anything more than it has already paid. (See *Aton, supra*, 93 Cal.App.5th at pp. 1235-1236, 1238-1239; see also *Pacific Bay, supra*, 12 Cal.App.5th at p. 216.)

To the extent the claim is based on Insurance Code section 10144.57, subdivision (c) (see FAC ¶ 48a-d), nothing in the FAC suggests plaintiff provided poststabilization care. (See Ins. Code, § 10144.57, subd. (c) [applicable to poststabilization care].)

Finally, to the extent the claim is based on Civil Code section 3275 (see FAC ¶ 48e), it fails to allege any facts explaining how this section applies.

3rd cause of action, unjust enrichment. Unjust enrichment is not a cause of action in California. (See *City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477; *Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 661.) Rather, it is synonymous with circumstances in which a plaintiff is entitled to a restitution remedy. (*Ibid.*) To the extent plaintiff is attempting to allege a quasi-contract claim for restitution/quantum meruit, the FAC already alleges such a claim. (Compare FAC ¶¶ 55-56 [third cause of action], with *id.* ¶¶ 58-66 [fourth cause of action for quantum meruit].)

4th cause of action, quantum meruit. The FAC fails to state facts sufficient to constitute a cause of action for quantum meruit. (See *Pacific Bay, supra*, 12 Cal.App.5th at pp. 214-215 [“To recover in quantum meruit, the ‘plaintiff must establish *both* that [it] was acting pursuant to either an *express or implied request* for such services from the defendant *and* that the services rendered were *intended to and did benefit* the defendant’; further, the defendant must have ‘retained [the] benefit with full appreciation of the facts....’ ”].)

The FAC fails to allege facts supporting the conclusory allegation that defendant benefited from plaintiff’s services. It alleges: “Sagebrush’s provision of medically necessary behavioral health care and treatment to Patients was intended to and, in fact, did benefit Defendants in that Patients were provided with excellent behavioral health care and treatment, which Defendants were obligated to arrange, pay for and/or provide at its own expense.” (FAC ¶¶ 53, 65.) But this only alleges a benefit intended for and received by defendant’s insureds, not the defendant. (See *id.* ¶ 3 [defendant is an insurer]; see also *Armijo v. ILWU-PMA Welfare Plan* (C.D. Cal., Aug. 21, 2015) 2015 WL 13629562 at *24 [“services provided by medical providers to patients do not inure to the benefit of insurers”].) Plaintiff does not, for example, allege any facts showing that by providing behavioral health services to defendant’s insureds, plaintiff somehow relieved defendant of its obligation to arrange for the same under defendant’s policies with its insureds such that defendant should now be liable for the reasonable value of those services. Indeed, plaintiff alleges it did not even know defendant was financially responsible for the patients’ services until after it had already started providing them. (See *id.* ¶¶ 61-62; but see *id.* ¶¶ 16, 31 [contradictory preauthorization allegations]; see also *Hartford Casualty Ins. Co. v. J.R. Marketing, L.L.C.* (2015) 61 Cal.4th 988, 1000 [“When a [plaintiff] acts simply as [it] would have done in any event, out of duty or self-interest, [it] cannot equitably claim compensation from anyone who merely happens to benefit as a result.”].)

It also remains uncertain as to how plaintiff's provision of out-of-network services to defendant's insureds benefited defendant, when defendant had "no contractual right to any contractual discount off [plaintiff's] billed charges" and was therefore purportedly required to pay 100% of those charges. (See FAC ¶¶ 1, 6-8, 21.)

5th cause of action, open book account. The FAC fails to state facts sufficient to constitute a cause of action for open book account. (See *State Compensation Insurance Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449 [elements]; Code of Civil Procedure section 337a ["The term 'book account' means a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business as conducted by such creditor or fiduciary, and is kept in a reasonably permanent form and manner...."].)

ERISA contentions. To the extent defendant demurs to the FAC on the ground it is preempted by ERISA, the argument fails because it relies on extrinsic evidence that cannot be considered on demurrer (*Ion Equipment Corp v. Nelson* (1980) 110 Cal.App.3d 868, 881; see King Decl. ¶ 4) and does not dispose of an entire cause of action. (*Fremont Indem. Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 [a demurrer must dispose of an entire cause of action to be sustained].)

Motion to Strike Portions of First Amended Complaint

Defendant Anthem Blue Cross Life and Health Insurance Company's motion to strike portions of first amended complaint is DENIED AS MOOT, in light of the ruling on the demurrer above.

		Defendant shall give notice.
57.	Zamarron v. State of California 2023-01369253	Defendant County of Riverside's demurrer to the complaint is OVERRULED. County of Riverside shall answer the complaint within 10 days. <u>1st cause of action, negligence.</u> The complaint states facts sufficient to constitute this cause of action based on Government Code section 835, with the requisite particularity. (See Gov. Code, § 835 [dangerous condition of public property]; <i>Amiodarone Cases</i> (2022) 84 Cal.App.5th 1091, 1115 [reasonable particularity]; <i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802 [same]; see also Compl. ¶ GN-1(1)-(3), (5), (6), (7) [citing Gov. Code, § 835], (8)-(13).) As for defendant's contention that the claim fails to state facts sufficient to constitute a cause of action to the extent it is based on Government Code sections 815.2 and 820, it fails to dispose of the entire cause of action. (See <i>Fremont Indem. Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 119.) <u>2nd cause of action, premises liability.</u> The complaint states facts sufficient to constitute this cause of action, with the requisite particularity. (See Gov. Code, § 835; <i>Amiodarone Cases, supra</i>, 84 Cal.App.5th at p. 1115 [reasonable particularity]; <i>Mathews v. Becerra</i> (2019) 8 Cal.5th 756, 768 [on demurrer, the court reads the complaint as a whole and its parts in their context]; see also Compl. ¶¶ GN-1, Prem.L-1, Prem.L-2, Prem.L-4, Prem.L-5.) Moving party shall give notice.
58.	Carpenter v. Garden Grove Post Acute LLC 2024-01410556	Plaintiff Carolyn Carpenter's motions to compel defendant Garden Grove Post Acute, LLC to provide further (1) responses to Form Interrogatories, Set One, and (2) responses to Requests for Admissions,

		Set One, are DENIED. (Code Civ. Proc., §§ 2030.300, 2033.290.) Defendant Garden Grove Post Acute, LLC has filed (belatedly) oppositions to these motions which demonstrate that further responses to each motion have been provided. (ROA 170, 172). Plaintiff's request for sanctions related to these motions is DENIED. Plaintiff's motion to compel further responses to Request for Identification and Production of Documents, Set One is GRANTED, in part. Defendant likewise filed (belatedly) an opposition which indicates that certain responses have been supplemented, and others have not been supplemented. (ROA 174). Defendant shall serve code compliant responses, without objections, to the following requests within ten days: Nos. 5, 9, 14-20, 22, 25-33, 38, 44-45, 47-48, 50-52, 56, 62-63, and 84. Any other responsive documents shall be served on plaintiff within ten days. To the extent defendant asserts a privilege as to some or all of the responsive documents, they shall provide a privilege log within 10 days identifying the alleged protected documents. The court finds defendant lacked substantial justification for its deficient responses, and imposes monetary sanctions in the amount of \$ \$1,110 against defendant Garden Grove Post Acute, LLC. Sanctions are payable to counsel for moving party within 30 days. Moving party shall give notice.
59.	Aurora Solutions, LLC v. Burrell 2020-01172379	Plaintiff Aurora Solutions, LLC's motions to compel further responses to form interrogatories set one and special interrogatories, set one as to defendant National Payment Systems, LLC and defendant Eventus Holdings, LLC are DENIED. Plaintiff acknowledges both defendants served supplemental responses on October 14, 2024. If plaintiff feels any of the supplemental responses are not code compliant, it needs to bring a motion to compel further responses (following the procedures

		set forth in the Discovery Act) specifically addressed to the supplemental responses. Plaintiff's request for sanctions related to these motions are denied. Plaintiff Aurora Solutions, LLC's motions to compel further responses to request for production of documents, set one as to defendant National Payment Systems, LLC and defendant Eventus Holdings, LLC are GRANTED. Defendants shall serve code compliant responses, without objections, to the requests with in ten days. Any other responsive documents shall be served on plaintiff within ten days. To the extent defendants assert a privilege as to some or all of the responsive documents, they shall provide a privilege log within 10 days identifying the alleged protected documents. Plaintiff's request for sanctions related to these motions is GRANTED. Defendants shall each pay the sum of \$1,570 to plaintiff through plaintiff's counsel. Payment shall be made within 30 days. Plaintiff shall give notice.
60.	Sowell v. City of Anaheim 2024-01394352	Defendants City of Anaheim's and Jared Moye's Motion to Declare Plaintiff Major R. Sowell a Vexatious Litigant, and for Order Requiring Security and Prefiling Authorization is GRANTED. (<u>See</u> Code Civ. Proc. § 391.1). The court grants defendants Request of Judicial Notice ("RJN") filed at ROA 24. <u>Brief overview of the allegations.</u> Plaintiff appears to allege that he was improperly terminated in February 2020 from his employment by Defendant City of Anaheim. The improper conduct allegedly included retaliation for whistleblowing activities. <u>Vexatious Litigant statute.</u> Defendants filed their motion pursuant to C.C.P. § 391. Relevant to this motion, Section 391(b) defines a "vexatious litigant" as one who does either of the following:

	(2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined. (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. Cases interpreting the vexatious litigant statute explain that its provisions “are designed to curb misuse of the court system by those persistent and obsessive litigants who, repeatedly, waste the time and resources of the court system and other litigants.” <i>Shalant v. Girard</i> (2011) 51 Cal. 4th 1164, 1169 (citation omitted); <u>see also</u> <i>In re Marriage of Deal</i> (2020) 45 Cal. App. 5th 613, 618 (same). The in propria persona litigant can be declared vexatious by “relitigate[ing] or attempt[ing] to relitigate matters previously determined against him or her, [or] repeatedly pursu[ing] unmeritorious or frivolous tactics in litigation. . . .” <i>Shalant</i>, at 1169-1170. <u>Analysis.</u> This is not the first litigation commenced by plaintiff related to his February 2020 termination. Previously, plaintiff filed litigation involving that termination in 2020, initially commenced in Los Angeles County and transferred to Orange County in case 2022-01239814. (RJN A). That case was dismissed with prejudice following a demurrer (RJN C), and a judgment entered June 13, 2022. (RJN F). A review of the docket from the prior case reveals that no appeal was taken from the judgment. The evidence submitted in support of this motion establishes that plaintiff filed seven separate actions in 2024 related to the same February 2020 termination, all of which raise virtually the same allegations. (<u>See</u> Decl. of Maya; Exh. A). Each of these actions named
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	as defendants both the City of Anaheim and Jared Moye. The court finds that seven separate actions pursued by the same plaintiff naming the same defendants and the same operative facts that have previously been judged against plaintiff satisfies the requirements of C.C.P. 391(b)(2). <u>See</u> <i>Goodrich v. Sierra Vista Regional Medical Center</i> (2016) 246 Cal. App. 4th 1260. The is so even though plaintiff has dismissed several of the seven actions. <i>Tokerud v. Capitolbank Sacramento</i> (1995) 38 Cal. App. 4th 775, 779 (“A party who repeatedly files baseless actions only to dismiss them is no less vexatious than the party who follows the actions through to completion. The difference is one of degree, not kind.”) The consequences of this finding are addressed below. While defendants argue that Section 391(b)(3) also applies to plaintiff, the court is not persuaded. The court reads this section as applying to conduct in a single pending civil action—and not a compilation of activities that can be observed from various separately-pending actions. It is true, as defendants have established, that plaintiff has filed motions that are unmeritorious or potentially frivolous. For example, in one of the other cases filed by plaintiff, 2024-01395650, plaintiff filed a motion to continue a trial date when no trial date has been set. (<u>See</u> Item 61 on the court’s current calendar.) Further, plaintiff has named the current opposition as “Notice of Opposition and Notice of Motion and Motion to Set-A-Side the Antichrist City of Anaheim and Defendant Jared Moye Seek Motion to Consolidate and Demur Complaint, the Antichrist Fail to Provide the Burden of Proof as Per Statutory Law, Which Automatic Grants Plaintiff, Motion to Set Aside the Antichrist also Requesting a Motion for Vexatious Litigant, There is Three Current Cases on File and one Past Case, Total of Four Cases, However Seven Cases Is Required to Be a Vexatious Litigant The Antichrist Again Fails to Provide the Requirements Needed to be a Vexatious Litigant, Which Automatic Grants Plaintiff Approval to Set-A-Side Motion.” (ROA 74). Also in this case, plaintiff has filed something that appears to request the revocation of a driver’s license. (ROA 37). But a meritless or frivolous motion in a different matter does not seem to fall within the framework of
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	391(b)(3). While plaintiff has made certain filings in the current case that may be frivolous, the few that have been made do not, at this time, rise to the level of violating Section 391(b)(3). See <i>Morton v. Wagner</i> (2007) 156 Cal. App. 4th 963, 972 (no bright line rule as to what constitutes repeatedly filing unmeritorious or frivolous motions). Defendants' motion on this grounds is denied. Nevertheless, plaintiff is cautioned that the court may revisit this ruling should plaintiff persist in filing frivolous or baseless motions. <u>Plaintiff shall post security (money); Plaintiff shall be subject to a pre-filing prohibition.</u> As a consequence of being declared a vexatious litigant, the vexatious litigant statute describes available remedies, which defendants seek. First, Section 391.3 states that, after the court has made a finding that a plaintiff is a vexatious litigant, the court then determines whether the plaintiff will prevail on plaintiff's claims. If the court finds "there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security" in an amount determined by the court. In determining the amount of the money that plaintiff must post, the court need not take into consideration plaintiff's ability to pay the ordered security. <i>Deveraux v. Latham & Watkins</i> (1995) 32 Cal. App. 4th 1571, 1587-1588 (overruled on other grounds). Second, Section 391.7 authorizes the court to issue an order that "prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed." Section 391.7 is "a powerful . . . tool designed to preclude the initiation of meritless lawsuits and their attendant expenditures of time and costs." <i>Shalant</i> 51 Cal. 4th at 1170. A trial court imposing a pre-filing order under 391.7(a) reflects a determination "that no court or adverse party should be burdened by the particular plaintiff's meritless litigation." <i>Id.</i> at 1171. It is "an important tool for the courts to manage their dockets and
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		prevent frivolous claims” by in propria persona litigants. <i>Id.</i> at 1176. Pursuant to Section 391.3, the court finds that plaintiff has no reasonable probability of prevailing on the allegations in the complaint. The conduct at issue occurred in 2020. The complaint was filed in 2024. Assuming a 3-year statute of limitations (C.C.P. § 338(a)), the complaint is time-barred. Shorter limitations periods may apply in any event. And given the facts of this case—namely, seven separate complaints filed arising out of the same nucleus of operative allegations—the court finds that a prefiling prohibition is appropriate. Therefore, the court orders plaintiff to post a \$10,000 bond for the benefit of moving defendants City of Anaheim and Jared Moye on or before January 6, 2025. Failure to do so shall result in the dismissal of this action against those defendants. C.C.P. §391.4. Further, the court orders that plaintiff is prohibited from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. The clerk of the court shall prepare Judicial Council form VL-100 for signature by the court. Once signed, the clerk of the court shall provide a copy to the Judicial Council. In issuing this order, the court has considered all of plaintiff’s oppositions. (ROA 18, 47, 74). Defendants shall give notice.
61.	Sowell v. City of Anaheim 2024-01395650	Defendants City of Anaheim’s and Jared Moye’s Motion to Declare Plaintiff Major R. Sowell a Vexatious Litigant, and for Order Requiring Security and Prefiling Authorization is GRANTED. (<u>See</u> Code Civ. Proc. § 391.1). The court grants defendants Request of Judicial Notice (“RJN”) filed at ROA 25. <u>Brief overview of the allegations.</u> Plaintiff appears to allege that he was improperly terminated in February 2020 from his employment by Defendant City of Anaheim. The improper conduct

	allegedly included retaliation for whistleblowing activities. <u>Vexatious Litigant statute.</u> Defendants filed their motion pursuant to C.C.P. § 391. Relevant to this motion, Section 391(b) defines a “vexatious litigant” as one who does either of the following: (2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined. (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. Cases interpreting the vexatious litigant statute explain that its provisions “are designed to curb misuse of the court system by those persistent and obsessive litigants who, repeatedly, waste the time and resources of the court system and other litigants.” <i>Shalant v. Girard</i> (2011) 51 Cal. 4th 1164, 1169 (citation omitted); <u>see also</u> <i>In re Marriage of Deal</i> (2020) 45 Cal. App. 5th 613, 618 (same). The in propria persona litigant can be declared vexatious by “relitigate[ing] or attempt[ing] to relitigate matters previously determined against him or her, [or] repeatedly pursu[ing] unmeritorious or frivolous tactics in litigation. . . .” <i>Shalant</i>, at 1169-1170. <u>Analysis.</u> This is not the first litigation commenced by plaintiff related to his February 2020 termination. Previously, plaintiff filed litigation involving that termination in 2020, initially commenced in Los Angeles County and transferred to Orange County in case 2022-01239814. (RJN A). That case was dismissed with prejudice following a demurrer (RJN C), and a judgment entered June 13, 2022. (RJN F). A review of the docket from
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	the prior case reveals that no appeal was taken from the judgment. The evidence submitted in support of this motion establishes that plaintiff filed seven separate actions in 2024 related to the same February 2020 termination, all of which raise virtually the same allegations. (<u>See</u> Decl. of Maya; Exh. A). Each of these actions named as defendants both the City of Anaheim and Jared Moye. The court finds that seven separate actions pursued by the same plaintiff naming the same defendants and the same operative facts that have previously been judged against plaintiff satisfies the requirements of C.C.P. 391(b)(2). <i>See Goodrich v. Sierra Vista Regional Medical Center</i> (2016) 246 Cal. App. 4th 1260. The is so even though plaintiff has dismissed several of the seven actions. <i>Tokerud v. Capitolbank Sacramento</i> (1995) 38 Cal. App. 4th 775, 779 (“A party who repeatedly files baseless actions only to dismiss them is no less vexatious than the party who follows the actions through to completion. The difference is one of degree, not kind.”) The consequences of this finding are addressed below. While defendants argue that Section 391(b)(3) also applies to plaintiff, the court is not persuaded. The court reads this section as applying to conduct in a single pending civil action—and not a compilation of activities that can be observed from various separately-pending actions. It is true, as defendants have established, that plaintiff has filed motions that are unmeritorious or potentially frivolous. For example, plaintiff filed a motion to continue a trial date when no trial date has been set. (ROA 9, 57) Further, plaintiff has named the current opposition as “Opposition Notice of Motion and Motion to Set-A-Side the Antichrist City of Anaheim and Defendant Jared Moye Seek Motion to Consolidate and Demur Complaint, the Antichrist Fail to Provide the Burden of Proof as Per Statutory Law, Which Automatic Grants Plaintiff, Motion to Set Aside the Antichrist also Requesting a Motion for Vexatious Litigant, There is Three Current Cases on File and one Past Case, Total of Four Cases, However Seven Cases Is Required to Be a Vexatious Litigant The Antichrist Again Fails to Provide the Requirements Needed to be a Vexatious Litigant, Which Automatic Grants Plaintiff
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	Approval to Set-A-Side Motion.” (ROA 78). Also in another case on the court’s current docket involving these same parties – 2024-01394352-- plaintiff has filed something that appears to request the revocation of a driver’s license. (ROA 37 form that related case). But a meritless or frivolous motion in a different matter does not seem to fall within the framework of 391(b)(3). While plaintiff has made certain filings in the current case that may be frivolous, the few that have been made do not, at this time, rise to the level of violating Section 391(b)(3). See <i>Morton v. Wagner</i> (2007) 156 Cal. App. 4th 963, 972 (no bright line rule as to what constitutes repeatedly filing unmeritorious or frivolous motions). Defendants’ motion on this grounds is denied. Nevertheless, plaintiff is cautioned that the court may revisit this ruling should plaintiff persist in filing frivolous or baseless motions. <u>Plaintiff shall post security (money); Plaintiff shall be subject to a pre-filing prohibition.</u> As a consequence of being declared a vexatious litigant, the vexatious litigant statute describes available remedies, which defendants seek. First, Section 391.3 states that, after the court has made a finding that a plaintiff is a vexatious litigant, the court then determines whether the plaintiff will prevail on plaintiff’s claims. If the court finds “there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security” in an amount determined by the court. In determining the amount of the money that plaintiff must post, the court need not take into consideration plaintiff’s ability to pay the ordered security. <i>Deveraux v. Latham & Watkins</i> (1995) 32 Cal. App. 4th 1571, 1587-1588 (overruled on other grounds). Second, Section 391.7 authorizes the court to issue an order that “prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.” Section 391.7 is “a powerful . . . tool designed to preclude the initiation of meritless lawsuits and their attendant expenditures of
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	time and costs.” <i>Shalant</i> 51 Cal. 4th at 1170. A trial court imposing a pre-filing order under 391.7(a) reflects a determination “that no court or adverse party should be burdened by the particular plaintiff’s meritless litigation.” <i>Id.</i> at 1171. It is “an important tool for the courts to manage their dockets and prevent frivolous claims” by in propria persona litigants. <i>Id.</i> at 1176. Pursuant to Section 391.3, the court finds that plaintiff has no reasonable probability of prevailing on the allegations in the complaint. The conduct at issue occurred in 2020. The complaint was filed in 2024. Assuming a 3-year statute of limitations (C.C.P. § 338(a)), the complaint is time-barred. Shorter limitations periods may apply in any event. And given the facts of this case—namely, seven separate complaints filed arising out of the same nucleus of operative allegations—the court finds that a prefiling prohibition is appropriate. Therefore, the court orders plaintiff to post a \$10,000 bond for the benefit of moving defendants City of Anaheim and Jared Moye on or before January 6, 2025. Failure to do so shall result in the dismissal of this action against those defendants. C.C.P. §391.4. Further, the court orders that plaintiff is prohibited from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. The clerk of the court shall prepare Judicial Council form VL-100 for signature by the court. Once signed, the clerk of the court shall provide a copy to the Judicial Council. In issuing this order, the court has considered all of plaintiff’s oppositions. (ROA 21, 42, 78). PLAINTIFF’S MOTION TO CONTINUE TRIAL Also on calendar today is Plaintiff Major Ray Sowell’s Motion to Continue Trial. That motion is denied. There is no trial date set in this action, thus there is no trial date to continue. Defendants shall give notice.
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